

[11 & 12 GEO. 5.] *Glasgow University* [Ch. ci.]
(Dundonald Bursaries) Order Confirmation Act, 1921.



CHAPTER ci.

An Act to confirm a Provisional Order under the A.D. 1921.
Private Legislation Procedure (Scotland) Act
1899 relating to Glasgow University. ---

[17th August 1921.]

WHEREAS His Majesty's Secretary for Scotland has
made the Provisional Order set forth in the
schedule hereunto annexed under the provisions of the
Private Legislation Procedure (Scotland) Act 1899 and it 62 & 63 Vict.
is requisite that the said Order should be confirmed by c. 47.
Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows:—

1. The Provisional Order contained in the schedule Confirmation
hereunto annexed shall be and the same is hereby of Order in
confirmed. schedule.

2. This Act may be cited as the Glasgow University Short title.
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S C H E D U L E.

GLASGOW UNIVERSITY.

Provisional Order to authorise the University Court of the University of Glasgow to sell the College Milton Estate in the Parish of East Kilbride in the County of Lanark vested in them for the purposes of the Foundation known as the Dundonald Bursaries and for other purposes.

WHEREAS by a deed of mortification (hereinafter in this Order referred to as "the deed of mortification") dated the tenth day of September one thousand six hundred and seventy-two William Earl of Dundonald and William Lord Cochrane mortified and disposed to the rector master and regents of the university and college of Glasgow and their successors in office perpetually all and whole their eleven merk land of old extent of Milltown and Arrate-shole with the mill mill lands multures and sequels and with the manor place houses biggings yards orchards and all other pertinents and commodities of the same lying within the parish of Kilbride and sheriffdom of Lanark and that for the uses and under the provisions and conditions therein mentioned and for the institution of the Dundonald Bursaries as therein set forth reserving always to the said Earl and his said son and their successors the patronage and presentation of the students to the said bursaries and with the provision that it should not be lawful to the said rector master or principal and regents either by themselves or with the consent of the said Earl and his son or their heirs or successors patrons aforesaid to annailzie and dispoise the said lands mill or others thereof foresaid or to invert or apply the rents profits and duties thereof to any other uses than to the uses before set down or to set tacks thereof for longer space than the space of nineteen years continued and together nor should it be lawful to them or their successors to set any tacks thereof without consent of the said Earl and his son and their foresaids as patrons above specified and in case the said rector master or principal and regents foresaid or their successors should come in the contrary of any of the

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said provisions or do any deed in prejudice thereof with or without the consent of the said Earl his said son or their foresaids patrons above specified and should alter the good and pious intention of the mortification foresaid then and in that case all such deed or deeds were declared to be void and null and the said rector master or principal and regents of the university foresaid and their successors should tyne and amit the benefit of the said mortification and the said lands and mill and others thereof above specified should appertain and accresce to the rector principal masters and regents of College of Saint Andrews upon the provisions and conditions always therein specified and no otherways And by the deed of mortification the said Earl and his son bound and obliged themselves and their heirs and successors to infeft and seise the said rector master or principal and regents foresaid of the said university and college of Glasgow and their said successors in the said offices for the uses always and upon the provisions therein mentioned and that by a sufficient charter and infeftment as therein mentioned:

A.D. 1921.

And whereas the deed of mortification was ratified and approved by an Act passed by the Parliament of Scotland on the tenth day of September one thousand six hundred and seventy-two intituled "Ratification of the Mortification granted be William Earle of Dundonald" in favors of the colledge of Glasgow:

And whereas a charter of resignation was granted by their Majesties King William and Queen Mary dated the sixth day of March and sealed the twenty-seventh day of April one thousand six hundred and ninety-one whereby the lands comprised in the deed of mortification were disposed to the rector master or principal and regents of the said university and college to be holden by them under the Crown as Prince of Scotland as therein mentioned in pura eleemosyna and for the purposes and conform to the conditions set forth in the said deed on which charter the said rector master or principal and regents were infeft conform to instrument of sasine in their favour dated the twenty-first day of July and recorded in the particular register of sasines reversions &c. for the sherifffdom of Lanark at Hamilton the twentieth day of August one thousand six hundred and ninety-one:

And whereas by an Act passed in the twenty-first and twenty-second years of Her late Majesty Queen

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A.D. 1921. Victoria intituled “An Act for regulating the Dundonald Bursaries in the University and College of Glasgow and for other purposes” (hereinafter in this Order referred to as “the Act of 1858”) it was enacted (inter alia) that it should be lawful for the said rector master or principal and regents from time to time with consent of the patron of the said bursaries to feu such portions of the said lands of Milltown and Arrateshole therein called Milton and Arratshole as they should think fit for the purpose of building thereon on the condition therein provided which power has not been exercised. And it was by the Act of 1858 further provided that it should be lawful for the said rector master or principal and regents with consent of the patron and for Patrick Graham Barns Esquire his heirs and successors respectively to exchange the parts of the lands of Limekilns described in Schedule (A) to the said Act for the parts of the lands of Milton described in Schedule (B) to the said Act and to enter into grant and execute all contracts deeds and writings necessary for carrying such exchange into effect. And it was thereby provided that the lands to be conveyed to the said rector master or principal and regents should be vested in and held by them for the purposes of the deed of mortification and of the Act of 1858 in the same manner as the said lands of Milton were then vested in and held by the said rector master or principal and regents :

And whereas the exchange or excambion of the lands described in Schedules (A) and (B) to the Act of 1858 was duly carried out by contract of excambion between the rector master or principal and regents of the University and College of Glasgow with consent of the Most Noble William Alexander Anthony Archibald Duke of Hamilton and Brandon then patron of the Dundonald Bursaries and the said Patrick Graham Barns dated thirteenth and twenty-second November and third December one thousand eight hundred and sixty and sixth May one thousand eight hundred and sixty-one and recorded in the new general register of sasines twenty-fourth May and in the books of council and session nineteenth July both in the year one thousand eight hundred and sixty-one and the lands of Milton and Arratshole now include the lands described in the said Schedule (A) and the lands described in the said Schedule (B) are excluded therefrom and form part of the estate of Limekilns :

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And whereas the Busby Railway Company incorporated by the Busby Railway Act 1863 in virtue of the powers contained in the Busby Railway (Kilbride Extension) Act 1865 acquired and became vested in two stripes or pieces of ground part of the said lands of Milton and Arratshole videlicet In the first place a stripe extending to three acres two roods and twenty-one and a half poles or thereby and in the second place a stripe extending to three roods one and a half poles to be occupied by or in connexion with the East Kilbride Extension of the Busby Railway conform to disposition by the rector master or principal and regents of the University and College of Glasgow in favour of the Busby Railway Company dated eighth and nineteenth December one thousand eight hundred and seventy-six and recorded in the division of the general register of sasines applicable to the county of Lanark first February one thousand eight hundred and seventy-seven which lands are now excluded from the lands of Milton and Arratshole : A.D. 1921.

And whereas by the Act of 1858 it was further provided that the deed of mortification and the said recited Act of the Parliament of Scotland and the whole charters and other deeds relating to the said estate and the said bursaries should (except in so far as altered or amended by or inconsistent with the said Act) be and remain in full force and effect :

And whereas by an Ordinance (No. 94 Glasgow No. 25) made by the Scottish Universities Commissioners under the Universities (Scotland) Act 1889 dated the fifteenth February one thousand eight hundred and ninety-five provision was made in relation to the periods during which the said bursaries should be tenable and other matters :

And whereas by the Universities (Scotland) Act 1889 it was enacted that the university court of a Scottish university should be a body corporate with perpetual succession and a common seal and that all the property heritable and moveable belonging to the university or to any existing college forming part of the university at the passing of the said Act whether the title of such property had been taken in the name of the university or such college or in the name of any person or persons in trust for or on behalf of the university or such college should be and was thereby vested in the university court from and after the date at which the new university court under the

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A.D. 1921. — said Act should have been declared by the Universities Commissioners to have been duly constituted in virtue of which enactment the university court of the University of Glasgow (hereinafter in this Order referred to as "the university court") is vested in the said lands of Milton and Arratshole :

And whereas the patronage of the said Dundonald Bursaries is now vested in the Hamilton Trustees as defined in the Hamilton Estates Act 1918 (hereinafter in this Order referred to as "the patrons") :

And whereas owing to the increase of taxation and of the cost of repairs and other outgoings and to other causes the net revenue from the said lands forming the foundation of the said Dundonald Bursaries is decreasing and is likely still further to decrease and it is expedient in the interest of the said foundation that the university court should be authorised to sell and realise the said lands and that so much of the deed of mortification and of the Act of 1858 as prohibits a sale of the said lands should be repealed :

And whereas it is expedient to provide for the investment and application of the proceeds of the sale of the said lands :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title. 1. This Order may be cited as the Glasgow University (Dundonald Bursaries) Order 1921.

Commence-
ment of
Order. 2. This Order shall commence and have effect on and from the date of the passing of the Act confirming this Order.

Repeal of
prohibition
of sale
contained
in deed of
mortifica-
tion. 3. Subject to the provisions of this Order the provisions of the deed of mortification and of the Act of the Parliament of Scotland dated tenth September one thousand six hundred and seventy-two recited in the preamble to this Order and of the charter granted by their Majesties King William and Queen Mary dated sixth March and

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sealed twenty-seventh April one thousand six hundred and ninety-one also so recited and of all other statutes deeds or writings which prohibit the selling and disposing of the said lands of Milton and Arratshole or any part or portion thereof including the portion acquired by excambion under the powers of the Act of 1858 or which ratify or confirm such prohibition are hereby repealed and annulled. A.D. 1921.

4. The university court may without completing any further title or registering a title in the register of sasines and without obtaining the consent of the patrons from time to time sell either by public roup or private contract and either as a whole or in lots and for such price and upon such terms and conditions as they may think fit the said lands of Milton and Arratshole or any part or parts thereof including the portion thereof acquired by excambion as aforesaid as the said lands are more particularly described in the schedule to this Order and grant valid dispositions or conveyances in favour of the purchaser or purchasers. Power of sale.

5. The university court may and shall lend out or invest the proceeds of the sale of the said lands after payment of the expenses attending the same in securities or investments in which trustees are by law for the time being authorised to lend out or invest trust funds or any other securities or investments in which the university court may from time to time be authorised to invest its own funds or assets and may from time to time vary and transpose such securities or investments. Powers of investment.

6. The university court shall hold and apply the proceeds of the sale of the said lands after payment of the expenses aforesaid and the investments for the time being representing the same and the income thereof for the purposes and subject to the provisions and conditions contained in the deed of mortification as such purposes provisions and conditions are modified or varied by the Act of 1858 and by the said ordinance (No. 94 Glasgow No. 25) made by the Scottish Universities Commissioners under the Universities (Scotland) Act 1889 and by this Order and subject to the provisions of this Order the deed of mortification and the Act of 1858 and the said ordinance shall continue to have full force and effect. Application of proceeds of sale.

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Saving for
patrons of
bursaries.

7. Except as in this Order expressly provided nothing contained in this Order shall prejudice or affect the right of patronage of the said bursaries as now vested in the patrons or any other right or interest of the patrons under the deed of mortification or the Act of 1858.

Costs of
Order.

8. The costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order and otherwise in relation thereto and in connexion with the carrying thereof into effect shall be paid by the university court out of the funds forming the Dundonald Foundation.

SCHEDULE referred to in the foregoing Order.

DESCRIPTION OF COLLEGE MILTON ESTATE.

All and whole the aforesaid eleven merkland of old extent of Milltown and Arrateshole with the whole parts pertinents and commodities of the same including therein those two lots of ground containing respectively 15 acres 13½ poles and 15 acres 1 rood 32 poles or thereby described in Schedule (A) to the Act of 1858 and acquired by excambion from Patrick Graham Barns Esquire of Limekilns and under exception of those five lots of ground containing 14 acres 1 rood and 31 poles 14 acres 2 roods and 3 poles 1 rood 15½ poles 1 rood 32½ poles and 3 roods 3½ poles or thereby described in Schedule (B) to the Act of 1858 and disposed to the said Patrick Graham Barns in excambion as aforesaid and also under exception of those two stripes of ground extending to 3 acres 2 roods and 21½ poles and 3 roods 1½ poles described in the disposition in favour of the Busby Railway Company and which lands now consist of and comprise the farms of Milton Hawbank and Arratshole with the woodlands and plantations buildings and erections and whole other parts and pertinents pertaining thereto lying in the parish of East Kilbride and county of Lanark and commonly known as the College Milton Estate.

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